

		As to the 5th cause of action, the motion is moot. As to the 7th cause of action, while it is clear that there were two incidents of water intrusion 4 months apart, there is no detail as to when Defendants were put on notice or that they were concealing the extent of damage under their control. More facts are needed to allege punitive damage conduct. To the extent the Motion to Strike is not deemed moot by the ruling on the demurrer, it is GRANTED with 20 days leave to amend. Defendants to give notice.
6.	30-2025-01471307 Velasquez vs. John Doe, Trustee of the Ebnajos Trust	1. Case Management Conference 2. Motion to Quash Service of Summons Defendant Abraham Nasiri Mourshaki move this Court for an order quashing the purported service of summons and complaint. Based on applicable law, said Motion to Quash is DENIED. First, it appears Defendant has made a general appearance herein thereby waiving any defect in service. A general appearance need not be a formal, technical step or act. “What is determinative is whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed.” (<i>Sanchez v. Superior Court</i> (1988) 203 Cal.App.3d 1391, 1397, 250 Cal.Rptr. 787.) “The appearance will be considered ‘general’ in nature if the defendant acts in a manner, ‘showing of a “purpose of obtaining any ruling or order of the court going to the merits of the case”.’ ” [<i>Nam Tai Electronics, Inc. v. Titzer</i> (2001) 93 Cal.App.4th 1301, 1307 [113 Cal.Rptr.2d 769, 772] <u>disapproved of by <i>Pavlovich v. Superior Court</i> (2002) 29 Cal.4th 262.</u>] Here, arguably appearing at <i>two</i> CMCs, submitting <i>two</i> CMC statements indicating an intent to file a demurrer and MSJ, seeking <i>and obtaining</i> a fee waiver (with the Court serving notice of the order), and informing the Court that no FAC had been served; and thus prompting the Court to order POS to be filed, is sufficient to establish a recognition of the Court’s authority to proceed herein. Second, the motion is untimely. The motion to quash must be made at defendant's initial appearance in the action, on or before the last day to plead “or within any further time that the court may for good cause allow.” [CCP § 418.10(a); see <i>Marriage of Obrecht</i> (2016) 245 CA4th 1, 16-17, 199 CR3d 438, 451-452.] Here, the POS (<i>not provided by Defendant</i>, but in ELF as ROA 10) indicates Defendant was served via substitute service on 4/30/2025 at 23 SILKTASSEL #140. RANCHO SANTA MARGARITA. CA., 92688. By 9/4/2025 he was in Court stating that he had not been served because service was at his son’s residence. Yet, this motion was not filed until almost a year later on 4/9/2026. As such, it is untimely. There is no good cause for allowing a Motion to be heard almost 1 ½ after service when Defendant has knowledge of (allegedly defective) service. Third, Defendant’s attack on service is also somewhat unsupported. He does not identify the date, address, recipient, or mailing associated with the substituted service he challenges, does not attach the proof of service, and offers no declaration from the son at whose home he says the papers were left. So, the Court is left to speculate that the POS at issue is ROA 10, but it is unclear. HOWEVER, the Court notes a First Amended Complaint (“FAC”) was filed on 10/27/2025. (ROA 24.) Thereafter, on 1/15/2026 the Court directed Counsel for plaintiff (s) to file the proof of service

		with the Court forthwith. On 4/24/2026 Plaintiff filed a “proof of non-service”. To date, no Proof of Service has been filed herein to indicate the FAC has been served <i>on anyone</i>. An amendment or amended complaint must be served on “the defendants affected thereby.” [CCP § 471.5] Pursuant to CRC Rule 3.110(b), “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint. When the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.” Notably, “If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed.” [CRC 3.110(f).] As such, the Court sets an OSC re: why sanctions shall not be imposed for failure to timely serve First Amended Complaint for October 8, 2026 at 10:30 am. Today’s Case management conference is continued to the same date/time. Finally, Defendant also makes a motion to dismiss under CCP§583.210 and 583.410. If service is not completed within <i>three years</i>, dismissal is <i>mandatory</i>. [CCP §§ 583.210, 583.250.] Also, Pursuant to CCP§583.410(a), “The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” However, this request is denied, without prejudice, as premature. Clerk to give notice.
7.	30-2026-01541292 Alikhanian vs. Cruise	1. Case Management Conference 2. Motion to Quash Discovery Subpoena Plaintiff, Lusine Alikhanian, moves for an order quashing, or narrowing, the deposition subpoenas for business records served by Defendant Joseph T. Cruise, M.D. on Keck Medicine of USC, Keck Medicine-USC Care Physician Billing, Keck Medicine of USC-Xrays, and CVS Pharmacy, Inc. The Motion to Quash is GRANTED, in part, Denied in part. Specifically, Plaintiff contends that the four deposition subpoenas should quashed, as drafted, because they are too broad and are not limited in time or scope. In the alternative, Plaintiff requests that the deposition subpoenas be limited to records that are reasonably related to the claims at issue and within a reasonable time period. Defendants, Joseph T. Cruise, M.D. and Cruise Plastic Surgery (collectively, “Defendants”) oppose the motion. Defendants contend that the motion should be denied, or that if the Court determines any limitation is warranted, the deposition subpoenas should be reasonably limited through subject-matter and temporal limitations tied to issues Plaintiff has placed in controversy rather than quashed in their entirety. At issue are four deposition subpoenas for business records served by Defendant Joseph T. Cruise, M.D. (“Dr. Cruise”) on Keck Medicine of USC, Keck Medicine-USC Care Physician Billing, Keck Medicine of USC-Xrays, and CVS Pharmacy, Inc. (collectively, the “deposition subpoenas”).